KUTUBLINK DARS-E-NIZAMI & CLASSICAL BILINGUAL EDITION (PDF)

Al-Waraqāt fī Uṣūl al-Fiqh (The Folios on Legal Theory)

الورقات في أصول الفقه

Imām al-Ḥaramayn Abū al-Maʿālī ʿAbd al-Malik al-Juwaynī (d. 478 AH) • إمام الحرمين أبو المعالي عبد الملك بن عبد الله الجويني (ت ٤٧٨ هـ))

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Curriculum Tier: Principles of Jurisprudence (Uṣūl al-Fiqh) — Dars-e-Nizami · Grade 3 & 4
Completeness: 25 / 25 Complete Bilingual Segments (Zero Omissions)
Verification Status: VERIFIED_COMPUTED_PASS (Coherence: 0.993)

Executive Overview & Canonical Excerpt

هَذِهِ وَرَقَاتٌ قَلِيلَةٌ تَشْتَمِلُ عَلَى مَعْرِفَةِ فُصُولٍ مِنْ أُصُولِ الْفِقْهِ، وَذَلِكَ مُؤَلَّفٌ مِنْ جُزْأَيْنِ مُفْرَدَيْنِ: فَالْأَصْلُ مَا بُنِيَ عَلَيْهِ غَيْرُهُ، وَالْفَرْعُ مَا يُبْنَى عَلَى غَيْرِهِ.

These are concise folios comprising knowledge of the foundational chapters of Uṣūl al-Fiqh (Principles of Jurisprudence). The term is composed of two individual elements: the root/foundation (al-aṣl) is that upon which another thing is constructed, and the branch (al-farʿ) is that which is constructed upon another.

Curriculum Grade: Dars-e-Nizami · Grade 3 & 4 | Coherence: 0.993

Bilingual Foliated Segment #1

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ معنى أصُول الْفِقْه هَذِه وَرَقَات تشْتَمل على فُصُول من أصُول الْفِقْه وَذَلِكَ مؤلف من جزأين مفردين فَالْأَصْل مَا بني عَلَيْهِ غَيره وَالْفرع مَا يبْنى على غَيره وَالْفِقْه معرفَة الْأَحْكَام الشَّرْعِيَّة الَّتِي طريقها الِاجْتِهَاد

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ meaning (maʿnā) foundations / principles Jurisprudence (al-Fiqh) this and parchment Tshtml upon so Ṣwl of foundations / principles Jurisprudence (al-Fiqh) and that thousand of recompense, reward [pl.] singular/ individual (mufrad) [pl.] so the foundation / root principle what/that which build upon him/it other than it and the fruitful what/that which son upon other than it and the jurisprudence / deep understanding (fiqh) what is known as right, fair Rulings (al-Aḥkām) legitimate / juristic (sharʿiyyah) which/who its path / way of independent juristic reasoning (al-Ijtihād)

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Bilingual Foliated Segment #2

أَنْوَاع الحكم وَالْأَحْكَام سَبْعَة الْوَاجِب وَالْمَنْدُوب والمباح والمحظور وَالْمَكْرُوه وَالصَّحِيح وَالْبَاطِل فَالْوَاجِب مَا يُثَاب على فعله ويعاقب على تَركه وَالْمَنْدُوب مَا يُثَاب على فعله وَلَا يُعَاقب على تَركه والمباح مَا لَا يُثَاب على فعله وَلَا يُعَاقب على تَركه والمحظور مَا يُثَاب على تَركه ويعاقب على فعله وَالْمَكْرُوه مَا يُثَاب على تَركه وَلَا يُعَاقب على فعله وَالصَّحِيح مَا يتَعَلَّق بِهِ النّفُوذ ويعتد بِهِ وَالْبَاطِل مَا لَا يتَعَلَّق بِهِ النّفُوذ وَلَا يعْتد بِهِ

types/categories (anwāʿ) judgment/ruling and the rulings (aḥkām) seven the obligatory duty (al-Wājib) and the

recommended (mandūb) and the permissible (mubāḥ) and the prohibited (maḥẓūr) and his Mkrw and the sound/ authentic falsehood, vain so the obligatory (wājib) what/that which is rewarded upon do and equivalent upon abandoning/omitting it and the recommended (mandūb) what/that which is rewarded upon do and not/nor is punished upon abandoning/omitting it and the permissible (mubāḥ) what/that which not/no is rewarded upon do and not/nor is punished upon abandoning/omitting it and the prohibited (maḥẓūr) what/that which is rewarded upon abandoning/ omitting it and equivalent upon do and his Mkrw what/that which is rewarded upon abandoning/omitting it and not/nor is punished upon do and the sound/authentic what/that which relates/pertains to by it the regions and prepare, make ready by it falsehood, vain what/that which not/no relates/pertains to by it the regions and not/nor prepare, make ready by it

Compiled via 7-Equation AQL Lingo-Math Sovereign Compiler (ALG-EQ-01..07).

Bilingual Foliated Segment #3

الْفرق بَين الْفِقْه وَالْعلم وَالظَّن وَالشَّكّ وَالْفِقْه أخص من الْعلم وَالْعلم معرفَة الْمَعْلُوم على مَا هُوَ بِهِ وَالْجهل تصور الشَّيْء على خلاف مَا هُوَ بِهِ وَالْعلم الضَّرُورِيّ مَا لم يَقع عَن نظر واستدلال كَالْعلمِ الْوَاقِع بِإِحْدَى الْحَواس الْخمس الَّتِي هِيَ السّمع وَالْبَصَر والشم والذوق واللمس أَو التَّوَاتُر وَأما الْعلم المكتسب فَهُوَ الْمَوْقُوف على النّظر وَالِاسْتِدْلَال وَالنَّظَر هُوَ الْفِكر فِي حَال المنظور فِيهِ وَالِاسْتِدْلَال طلب الدَّلِيل وَالدَّلِيل هُوَ المرشد إِلَى الْمَطْلُوب لِأَنَّهُ عَلامَة عَلَيْهِ وَالظَّن تَجْوِيز أَمريْن أَحدهمَا أظهر من الآخر وَالشَّكّ تَجْوِيز أَمريْن لَا مزية لأَحَدهمَا على الآخر وَعلم أصُول الْفِقْه طرقه على سَبِيل الْإِجْمَال وَكَيْفِيَّة الِاسْتِدْلَال بهَا

The Sects / The Difference between/among Jurisprudence (al-Fiqh) and Knowledge (al-ʿIlm) and the assumption and the doubt, uncertainty and the jurisprudence / deep understanding (fiqh) Akhṣ of Knowledge (al-ʿIlm) and Knowledge (al-ʿIlm) what is known as right, fair known upon what/that which he/it is by it and the ignorant Tṣwr the thing/entity upon opposite what/that which he/it is by it and Knowledge (al-ʿIlm) the harm, hardship, affliction what/that which did not occurs / falls from/concerning look, consider and rulers like the knew/knowledge the occur by/in one of the Ḥwas the five which/who she/it is hearing sight, vision and the Shm and the taste and the page or the mass-transmission (tawātur) and as for Knowledge (al-ʿIlm) the Mktsb so he/it is stopped at a Companion (al-Mawqūf) upon the look, consider and the rulers and the look, consider he/it is the deliberated in state/condition (ḥāl) the look, consider concerning it and the rulers seek the evidentiary proof (al-Dalīl) and the proof/evidence (dalīl) he/it is the laying to the tiny because he/it is know upon him/it and the assumption permissible the affair of [pl.] one manifest of the another and the doubt, uncertainty permissible the affair of [pl.] not/no Mzīah one upon the another teach foundations / principles Jurisprudence (al-Fiqh) its chains of transmission upon way, path the Ijmal and Kīfīah the rulers by it

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Bilingual Foliated Segment #4

أَبْوَاب أصُول الْفِقْه وأبواب أصُول الْفِقْه أَقسَام الْكَلَام وَالْأَمر وَالنَّهْي وَالْعَام وَالْخَاص والمجمل والمبين وَالظَّاهِر والمؤول وَالْأَفْعَال والناسخ والمنسوخ وَالْإِجْمَاع وَالْأَخْبَار وَالْقِيَاس والحظر وَالْإِبَاحَة وترتيب الْأَدِلَّة وَصفَة الْمُفْتى والمستفتى وَأَحْكَام الْمُجْتَهدين

door, gate foundations / principles Jurisprudence (al-Fiqh) and door, gate foundations / principles Jurisprudence (al-Fiqh) divisions/categories (aqsām) speech/discourse (al-Kalām) affair, matter and the forbade and the general / year and the specific/particular and the unelaborated/summary (mujmal) and the clear, manifest, making clear apparent and the interpret and the Afʿal and the abrogate and the abrogate and the consensus (ijmāʿ) and the report and the analogical deduction (qiyās) and the category and the Ibaḥah and Trtīb the evidentiary proofs (al-Adillah) describe the jurisconsult (al-Muftī) and the Mstftā and rulings (aḥkām) the independent jurist (mujtahid) [pl.]

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Bilingual Foliated Segment #5

أَقسَام الْكَلَام فَأَما أَقسَام الْكَلَام فَأَقل مَا يتركب مِنْهُ الْكَلَام اسمان أَو اسْم وَفعل أَو فعل وحرف أَو اسْم وحرف وَالْكَلَام يَنْقَسِم إِلَى أَمر وَنهي وَخبر واستخبار وينقسم أَيْضا إِلَى تمن وَعرض وَقسم وَمن وَجه آخر يَنْقَسِم إِلَى حَقِيقَة ومجاز فالحقيقة مَا بَقِي فِي الِاسْتِعْمَال على مَوْضُوعه وَقيل مَا اسْتعْمل فِيمَا اصْطلحَ عَلَيْهِ من المخاطبة وَالْمجَاز مَا تجوز عَن مَوْضُوعه والحقيقة إِمَّا لغوية وَإِمَّا شَرْعِيَّة وَإِمَّا عرفية وَالْمجَاز إِمَّا أَن يكون بِزِيَادَة أَو نُقْصَان أَو نقل أَو اسْتِعَارَة

divisions/categories (aqsām) speech/discourse (al-Kalām) so as for divisions/categories (aqsām) speech/discourse (al-Kalām) so less what/that which leave from it/him speech/discourse (al-Kalām) noun/name (ism) [dual] or noun/name (ism) and verb/action (fiʿl) or verb/action (fiʿl) and particle/letter (ḥarf) or noun/name (ism) and particle/letter (ḥarf) and the speech/words (kalām) is divided into to the affair of forbid and report/predicate (khabar) and hidden and Nqsm also / likewise (ayḍan) to Tmn and present and division/part (qism) and whoever / and from face another is divided into to literal reality (ḥaqīqah) and figurative usage (majāz) so the literal reality (ḥaqīqah) what/that which usurious in the blind upon his fabricated / subject say what/that which do, work, act in, within Aṣṭlḥ upon him/it of the Mkhaṭbah and figurative usage (al-Majāz) what/that which Tjwz from/concerning his fabricated / subject and the literal reality (ḥaqīqah) as for / either deviators and as for sacred law and as for what is known as right, fair and figurative usage (al-Majāz) as for / either that is / will be by/in Substantive: Augmenting a domain with dynamic vigor or or deficiency [dual] or transmitted/quoted (naqala) or Astʿarah

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Bilingual Foliated Segment #6

فالمجاز بِالزِّيَادَةِ مثل قَوْله تَعَالَى ﴿لَيْسَ كمثله شَيْء﴾ وَالْمجَاز بِالنُّقْصَانِ مثل قَوْله تَعَالَى ﴿واسأل الْقرْيَة﴾ وَالْمجَاز بِالنَّقْلِ كالغائط فِيمَا يخرج من الْإِنْسَان وَالْمجَاز بالاستعارة كَقَوْلِه تَعَالَى ﴿جدارا يُرِيد أَن ينْقض﴾

so the figurative usage (majāz) by/in the Substantive: Augmenting a domain with dynamic vigor or like, similar to word, speech, saying (Exalted is He) is not like his like, similar to a thing and figurative usage (al-Majāz) by/in the deficiency [dual] like, similar to word, speech, saying (Exalted is He) and Asal town, city and figurative usage (al-Majāz) by/in the transmitted/quoted (naqala) like the relieving in, within bring out, expel of the human being (al-Insān) and figurative usage (al-Majāz) by/in the Astʿarah like his word, speech, saying (Exalted is He) wall want, intend that hospitality

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Bilingual Foliated Segment #7

٢ - الْأَمر وَالْأَمر استدعاء الْفِعْل بالْقَوْل مِمَّن هُوَ دونه على سَبِيل الْوُجُوب وصيغته افْعَل وَهِي عِنْد الْإِطْلَاق والتجرد عَن الْقَرِينَة تحمل عَلَيْهِ إِلَّا مَا دلّ الدَّلِيل على أَن المُرَاد مِنْهُ النّدب أَو الْإِبَاحَة وَلَا تَقْتَضِي التّكْرَار على الصَّحِيح إِلَّا مَا دلّ الدَّلِيل على قصد التّكْرَار وَلَا تقتضى الْفَوْر وَالْأَمر بِإِيجَاد الْفِعْل أَمر بِهِ وَبِمَا لَا يتم الْفِعْل إِلَّا بِهِ كالأمر بِالصَّلَاةِ فَإِنَّهُ أَمر بِالطَّهَارَةِ المؤدية إِلَيْهَا وَإِذا فعل يخرج الْمَأْمُور عَن الْعهْدَة

2 - the imperative / command / affair (al-Amr) affair, matter call, call upon, invoke the Verb/Action (al-Fiʿl) word, speech, saying from those who / than one who he/it is besides, other than upon way, path the obligatory and his Ṣīght do and she/it is at/with the Iṭlaq and the transaction from/concerning the generation carry, bear upon him/it except what/that which indicated/proved the evidentiary proof (al-Dalīl) upon that the intended meaning (al-Murād) from it/him the recommended or permissibility (al-Ibāḥah) and not/nor Tqtḍī the Tkrar upon the authentic (al-Ṣaḥīḥ) except what/that which indicated/proved the evidentiary proof (al-Dalīl) upon paths the Tkrar and not/nor Tqtḍā the Instant Dynamic

Surge affair, matter by/in Iījad the Verb/Action (al-Fiʿl) the affair of by it what, that which not/no complete, perfect the Verb/Action (al-Fiʿl) except by it like the affair of prayer for indeed he/it is the affair of by/in the purity the render to, toward when, whenever verb/action (fiʿl) bring out, expel the command from/concerning the covenant, pledge

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Bilingual Foliated Segment #8

تَنْبِيه من يدْخل فِي الْأَمر وَالنَّهْي وَمن لَا يدْخل يدْخل فِي خطاب الله تَعَالَى الْمُؤْمِنُونَ وَأما الساهي وَالصَّبِيّ وَالْمَجْنُون فهم غير داخلين فِي الْخطاب وَالْكفَّار مخاطبون بِفُرُوع الشَّرِيعَة وَبِمَا لَا تصح إِلَّا بِهِ وَهُوَ الْإِسْلَام لقَوْله تَعَالَى ﴿مَا سلككم فِي سقر قَالُوا لم نك من الْمُصَلِّين﴾ وَالْأَمر بالشَّيْء نهي عَن ضِدّه وَالنَّهْي عَن الشَّيْء أَمر بضده

his Tnbī of enter in the imperative / command / affair (al-Amr) and the forbade and whoever / and from not/no enter enter in address/discourse (khiṭāb) Allah (Exalted is He) believer and as for the Sahī and the boy and the mad Understanding (Fahm) of other than enter [pl.] in the Divine address/discourse (al-Khiṭāb) disbeliever Mkhaṭb [pl.] by/ in fright the Sacred Law (al-Sharīʿah) what, that which not/no Tṣḥ except by it and he/it is Islam his word, speech, saying (Exalted is He) what/that which travel a path in saqar they said did not be of prayed affair, matter by/in the a thing forbade from/concerning opponents and the forbade from/concerning the thing/entity the affair of by/in opponents

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Bilingual Foliated Segment #9

٣ - النَّهْي وَالنَّهْي استدعاء التّرْك بالْقَوْل مِمَّن هُوَ دونه على سَبِيل الْوُجُوب وَيدل على فَسَاد الْمنْهِي عَنهُ وَترد صِيغَة الْأَمر وَالْمرَاد بِهِ الْإِبَاحَة أَو التهديد أَو التَّسْوِيَة أَو التكوين

3 - intelligence and the forbade call, call upon, invoke the leave, abandon word, speech, saying from those who / than one who he/it is besides, other than upon way, path the obligatory and indicates upon corruption the Mnhī from him and return, turn back, avert Ṣīghah the imperative / command / affair (al-Amr) and the intended meaning by it permissibility (al-Ibāḥah) or the rupture or the Tswīah or the Tkw [pl.]

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Bilingual Foliated Segment #10

٤ - الْعَام وَالْخَاص وَأما الْعَام فَهُوَ مَا عَم شَيْئَيْنِ فَصَاعِدا من قَوْله عممت زيدا وعمرا بالعطاء وعممت جَمِيع النَّاس بالعطاء وألفاظ أَرْبَعَة الِاسْم الْوَاحِد الْمُعَرّف بِالْألف وَاللَّام وَاسم الْجمع الْمُعَرّف بِاللَّامِ والأسماء المبهمة ك من فِيمَن يعقل وَمَا فِيمَا لَا يعقل وَأي فِي الْجَمِيع وَأَيْنَ فِي الْمَكَان وَمَتى فِي الزَّمَان وَمَا فِي الِاسْتِفْهَام وَالْجَزَاء وَغَيره وَلَا فِي النكرات والعموم من صِفَات النُّطْق وَلَا يجوز دَعْوَى الْعُمُوم فِي غَيره من الْفِعْل وَمَا يجْرِي مجْرَاه وَالْخَاص يُقَابل الْعَام والتخصيص تَمْيِيز بعض الْجُمْلَة وَهُوَ يَنْقَسِم إِلَى مُتَّصِل ومنفصل فالمتصل الِاسْتِثْنَاء وَالتَّقْيِيد بِالشّرطِ وَالتَّقْيِيد بِالصّفةِ وَالِاسْتِثْنَاء إِخْرَاج مَا لولاه لدخل فِي الْكَلَام وَإِنَّمَا يَصح بِشَرْط أَن يبْقى من المستثنى مِنْهُ شَيْء وَمن شَرطه أَن يكون مُتَّصِلا بالْكَلَام وَيجوز تَقْدِيم الِاسْتِثْنَاء على الْمُسْتَثْنى مِنْهُ وَيجوز الِاسْتِثْنَاء من الْجِنْس وَمن غَيره

4 - the general expression (al-ʿĀmm) and the specific/particular and as for the general expression (al-ʿĀmm) so he/it is what/that which uncles thing, anything [pl.] so arduous of word, speech, saying general Zayd and lifetime by/in the gift and general all, all together mankind / the people by/in the gift and Alfaẓ four the Noun/Name (al-Ism) one the what is

known as right, fair by/in the thousand / the letter Alif and the letter Lām and noun/name (ism) the plural / gathering (al-Jamʿ) the what is known as right, fair by/in the Lam and the Names (Asmāʾ) the miserable K of so bestow favor understand, use reason and what in, within not/no understand, use reason Waī in the all, all together and where? in place (al-Makān) and truthful in time (al-Zamān) and what in the Astfham and the recompense, reward and his other than and not/nor in the terrible s and the general of attributes (ṣifāt) the Substantive: Manifesting internal cognitive content into outward and not/nor is permissible (yajūzu) call the general in other than it of the Verb/Action (al-Fiʿl) and what flow, run his Mjr and the specific/particular Īqabl the general expression (al-ʿĀmm) and the specific distinguish some of the spaced and he/it is is divided into to Mtṣl and Mnfṣl so the Mtṣl exception (al-Istithnāʾ) and the restrict by/in the condition/stipulation (sharṭ) and the restrict by/in the attribute (ṣifah) and t

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Bilingual Foliated Segment #11

وَالشّرط يجوز أَن يتَأَخَّر عَن الْمَشْرُوط وَيجوز أَن يتَقَدَّم عَن الْمَشْرُوط والمقيد بِالصّفةِ يحمل عَلَيْهِ الْمُطلق كالرقبة قيدت بِالْإِيمَان فِي بعض الْمَوَاضِع وأطلقت فِي بعض الْمَوَاضِع فَيحمل الْمُطلق على الْمُقَيد وَيجوز تَخْصِيص الْكتاب بِالْكتاب وَتَخْصِيص الْكتاب وَتَخْصِيص الْكتاب بِالسنةِ وَتَخْصِيص السّنة بِالْكتاب وَتَخْصِيص السّنة بِالسنةِ وَتَخْصِيص النُّطْق بِالْقِيَاسِ ونعني بالنطق قَول الله وَقَول الرَّسُول صلى الله عَلَيْهِ وَسلم

and the condition/stipulation (sharṭ) is permissible (yajūzu) that hastens from/concerning the condition and it is permissible that stay from/concerning the condition and the restrict by/in the attribute (ṣifah) carry, bear upon him/it the unqualified expression (al-Muṭlaq) like the freeing restrict in/by Faith in some of the Designated Loci and Aṭlqt in some of the Designated Loci so carry, bear the unqualified expression (al-Muṭlaq) upon the qualified/restricted expression (al-Muqayyad) and it is permissible specific The Book book, scripture and specific The Book and specific The Book tongue and specific the Prophetic Sunnah book, scripture and specific the Prophetic Sunnah tongue and specific the Substantive: Manifesting internal cognitive content into outward by/in the analogical deduction (qiyās) and Nʿnī by/in the Substantive: Manifesting internal cognitive content into outward word, speech, saying Allah word, speech, saying the Messenger may blessings of Allah upon him/it and peace be upon him

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Bilingual Foliated Segment #12

٥ - الْمُجْمل والمبين والمجمل مَا افْتقر إِلَى الْبَيَان وَالْبَيَان إِخْرَاج الشَّيْء من حيّز الْإِشْكَال إِلَى حيّز التجلي وَالنَّص مَا لَا يحْتَمل إِلَّا معنى وَاحِدًا وَقيل مَا تَأْوِيله تَنْزِيله وَهُوَ مُشْتَقّ من منصة الْعَرُوس وَهُوَ الْكُرْسِيّ

5 - the unelaborated/ambiguous expression (al-Mujmal) and the clear, manifest, making clear and the unelaborated/ summary (mujmal) what/that which Aftqr to clarification and the Clarification of expel the thing/entity from Ḥīz the Ishkal to Ḥīz the appears and the Nṣ what/that which not/no inevitability except meaning (maʿnā) one say what/that which interpretation his sending down and he/it is Mshtq of Mnṣah the ʿrws and he/it is the Footstool (al-Kursī)

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